

Defendant Freedom Forever has filed this motion to compel further responses to form interrogatories from plaintiff Vega. No opposition to the motion has been filed. However, last week Freedom Forever filed a notice of bankruptcy, which operates to stay all proceedings in this state-court case. The motion is therefore taken **off calendar**.

9. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM KATHLEEN VEGA TO SPECIAL INTEROGS, SET 1**
FILED BY: FREEDOM FOREVER, LLC
TENTATIVE RULING:

Defendant Freedom Forever has filed this motion to compel further responses to special interrogatories from plaintiff Caballero. No opposition to the motion has been filed. However, last week Freedom Forever filed a notice of bankruptcy, which operates to stay all proceedings in this state-court case. The motion is therefore taken **off calendar**.

10. 9:00 AM CASE NUMBER: C25-02263
CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: STAY UNLAWFUL DETAINER**
FILED BY: GODDARD, THOMAS JOSEPH
TENTATIVE RULING:

Before the Court is Plaintiff Thomas Goddard's Motion for Stay of Unlawful Detainer Pending Resolution of Discrimination Claims. Plaintiff's Motion is **denied as moot**.

Factual Allegations and Procedural Background

On August 15, 2025, Plaintiff filed the Complaint in this instant matter which is a dispute between a tenant (Plaintiff) and his landlord (Defendants).

On November 17, 2025, Defendant 1910 Apartments initiated an unlawful detainer action against Plaintiff (case No. MS25-0977). On January 26, 2026, the court entered a default judgment against Plaintiff. Notice of entry of judgment was sent on January 28, 2026. A writ of possession was issued on January 30, 2026. Plaintiff filed a notice of appeal on February 17, 2026. A stay of execution was issued, staying the order through February 27, 2026. The appeal was dismissed on April 6, 2026.

Defendant's counsel indicates that the Sheriff's department completed a lockout of the Property and that as of April 9, 2026, Plaintiff has been removed all his personal items from the Property and has vacated the premises.

Standard

"A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141 quoting *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the U.S. Supreme Court "explained, 'the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.'" (*Ibid.* quoting

Landis v. North American Co. (1936) 299 U.S. 248, 254.) “Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (*Freiberg v. City of Mission Viejo* (1995) 33 CalApp.4th 1484, 1489.)

Analysis

As outlined above, the UD action underlying this Motion has been completely resolved. Accordingly, there is nothing left to stay. In other words, the current Motion is moot. A case becomes moot when “the question addressed was at one time a live issue in the case,” but has lost its life “because of events occurring after the judicial process was initiated.” (*Younger v. Superior Court* (1978) 21 Cal.3d 102, 120.) “[T]he duty of this court ... is to decide actual controversies ... and not to give opinions upon moot questions or abstract propositions....” (*Consol. etc. Corp. v. United A. etc. Workers* (1946) 27 Cal.2d 859, 863.)

As the underlying UD action has been completely resolved, Plaintiff has already appealed that decision – which was dismissed, and Plaintiff has already been removed from and vacated the Property, there is no longer any case to be stayed. Arguably the motion to stay the UD action ought to have been filed in the UD action. But whether filed there or here, there is no longer any live motion requiring decision.

Conclusion

Plaintiff’s motion to stay the unlawful detainer action, case no. MS25-0977, is **denied as moot**.

11. 9:00 AM CASE NUMBER: C25-03663
CASE NAME: CAILYN USHER VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant school district moves to set aside its default, which apparently resulted from a mix-up of internal communications on the defense side about appointing counsel to represent the district. The motion is unopposed, and it is **granted**. Defendant may file and serve an answer by June 18. This should have been handled by stipulation, as it appears that plaintiff was willing to so stipulate with only minor and conventional added details.

12. 9:00 AM CASE NUMBER: C26-00046
CASE NAME: STEVEN SMITH VS. JESSICA ZAPRUDER
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: ZAPRUDER, JESSICA
TENTATIVE RULING:

Before the Court is the Zapruder defendants’ demurrer to plaintiff Smith’s First Amended Complaint for (1) negligence (against Jessica Zapruder and Michael Zapruder), (2) breach of contract (against Jessica Zapruder and Michael Zapruder), and (3) breach of contract (against Marjorie Zapruder).

For the following reasons, the demurrer is **sustained with leave to amend**.